

26SMCV00342 26SMCV00342

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Case Number: 26SMCV00342 Hearing Date: July 17, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

17, 2026

CASE NAME: Morning

Star, LLC v. Keith B. Canter, et al.

CASE NO.: 26SMCV00342

DEMURRER

TO CROSS-COMPLAINT

MOVING PARTY: Plaintiff/Cross-Defendant

Morning Star, LLC

RESPONDING PARTY(S): Defendant/Cross-Complainant

Keith B. Canter, Trustee of the Canter Schoen Family Trust u/t/d March 17, 2015

REQUESTED RELIEF:

1. Demurrer

to the first and second causes of action in the cross-complaint for failing to state sufficient facts to constitute a cause of action.

TENTATIVE RULING:

1. Demurrer

to the first cause of action is OVERRULED;

2. Demurrer

to the second cause of action is OVERRULED;

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On January 26, 2026, Plaintiff Morning Star, LLC
(Plaintiff) filed a Complaint against

Defendants Keith B. Canter and Karen Elise Schoen,
Trustees of The Canter Schoen Family

Trust U/T/D March 17, 2015. The
caption alleging two causes of action.
First, Breaches

Declarations of Covenants, Conditions and Restrictions for
Sea Star Estates and, second, for

Breach of Restrictive Covenants. The body of the
complaint, however, alleges three causes of

Action: First, Breaches Declarations of Covenants,
Conditions and Restrictions for Sea Star

Estates (relating to construction of improvements to
existing Canter home); Second, Breaches

Declarations of Covenants, Conditions and Restrictions for
Sea Star Estates (relating to original

construction); and, Third, Breach of Restrictive
Covenants.

On March 2, 2026, Plaintiff filed a motion for
preliminary injunction that relates only to the first cause of action

which the court DENIED without prejudice.

On March 27, 2026, Defendant/Cross-Complainant Keith B. Canter, Trustee of the Canter Schoen Family Trust u/t/d March 17, 2015 (Cross-Complainant) filed a cross-complaint against Cross-Defendants Morning Star, LLC and Patrick Farshad Nazemi, Trustee of the Nevada Reliable Trust (Cross-Defendants) with two causes of action for: (1) violation of the California Coastal Act ("Act"); and (2) nuisance. According to the cross-complaint, Cross-Defendants maintain a tall ficus hedge and multiple palm trees on the Morning Star property that violate the landscaping restrictions in the Coastal Development Permit and unlawfully block ocean views from Cross-Complainant's adjacent property. He further alleges that Nazemi intentionally planted and continues to maintain this non-native vegetation without required approvals, creating fire hazards, root intrusion, shade impacts, and substantial daily Coastal Act violations. Additionally, Cross-Complainant claims Nazemi placed surveillance cameras aimed at his home to harass and intimidate him, causing emotional distress, privacy violations, and property-value diminution.

On April 28, 2026, Morning Star, LLC filed the instant demurrer to the cross-complaint. On July 2, 2026, Cross-Complainant filed an opposition. On July 9, 2026, Morning Star, LLC filed a reply.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). ¹ The meet and confer requirement also applies to motions to strike. (CCP § 435.5.)²

Here, the parties met and conferred "[a]t least five days before the deadline" to file a responsive pleading. (Declaration of Daniel Friedlander ¶ 4.) This requirement is therefore met.

Demurrer –

Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, 147 Cal.App.4th at 747.)

;

When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.)

ANALYSIS:

First Cause of
Action: Violation of the California Coastal Act

Morning Star contends this claim fails because they are not violating the special condition at issue, as phrased by the terms of that special condition.

Cross-Complainant argues this is an improper factual challenge and that these arguments are a defense to the claim rather than showing the claim is defective.[1]

Morning Star replies that these unplead theories do not defeat the demurrer and there are still no facts of a violation with the Coastal Commission's CDP.

“Any person who violates any provision of this division may be civilly liable” (Pub. Res. Code § 30820(a).) “Civil liability may be imposed by the superior court in accordance with this article on any person who performs or undertakes development that is in violation of this division or that is inconsistent with any coastal development permit previously issued by

the commission,” (Id. at subd. (a)(1).)

After reviewing the cross-complaint, Cross-Complainant sufficiently stated a claim for violation of the California Coastal Act, in theory. First, Cross-Complainant alleges a violation of Coastal Development Permit No. 4-97-252, Special Condition No. 1. (Cross-Compl. ¶¶ 13, 14, 16, 17.) Reading the allegations in full and in context, Cross-Complainant alleges that planting/maintaining the palm and ficus trees violate the prohibition on invasive, non-indigenous plant species articulated in Special Condition No. 1. (Cross-Compl. ¶ 14.) Whether this is true is outside the scope of this motion.[2] But there is more.

While it is true that the cross-complaint reveals no conduct alleged by Morning Star to violate the Act (Cross-Compl. ¶ 11, 19),[3] it is alleged, however, that under the Act the current owner is responsible for violations. (Cross-Compl. ¶ 18.) This is sufficient for pleading purposes.

Accordingly, the court OVERRULES the demurrer to the first cause of action.

Second Cause of
Action: Nuisance

Morning Star contends none of the conditions alleged by Cross-Complainant support a claim for nuisance: blocking light or view is not nuisance as a matter of law; fear of future wildfire risk is not nuisance as a matter of law; and no pleaded facts of actual damage caused by alleged encroaching tree roots.

Cross-Complainant argues that he alleged two different acts constituting nuisance, Morning Star does not have the right to maintain illegal improvements on its land, and this demurrer is simply a delay tactic.[4]

Morning Star replies there is no exception for illegal activity and Cross-Complainant conceded the remaining arguments. They add that Cross-Complainant cannot repackage any privacy intrusion claims as nuisance to defeat the demurrer.

The elements for a private nuisance claim are: (1) interference with plaintiff's use and enjoyment of plaintiff's property; (2) invasion of plaintiff's use and enjoyment involves substantial actual damage; and (3) interference is unreasonable as to the nature, duration or amount. (Today's IV v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1176.)

As a threshold matter, the only nuisance as to Morning Star involves the trees. (Cross-Compl. ¶ 25 ["Nazemi acting on his own behalf, has caused video cameras to be placed on properties on three sides of the Canter property."]) The court limits its discussion to the trees.

Cross-Complainant alleges the following nuisance due to "the unreasonable maintenance of tall Ficus and Palm trees" on the property: "(a) create an unreasonable risk of wild fire;" "(2) include large tree roots that encroach onto the Canter property and interfere with the drainage system installed along the southerly property line of the Canter property;" "(3) block ocean views otherwise visible from the Canter property;" and "(4) cast a shadow over a large portion of the Canter property because the sun is in the southern sky throughout the day." (Cross-Compl. ¶ 22.) The court addresses each in turn.

i.

Risk of wild fire

"[A] private nuisance action cannot be maintained for an interference in the use and enjoyment of land caused solely by the fear of a future injury." (Koll-Irvine Center Property Owners Assn. v. County of Orange (1994) 24 Cal.App.4th 1036, 1041-1042.)

Here, there are no facts of a present injury concerning the wild fire risk. As plead, this is a future risk courts have not extended to cover private nuisance claims.

ii.

Large tree roots

Invading roots are considered a nuisance if the plaintiff shows damage. (See, e.g., Stevens v. Moon (1921) 54 Cal.App.737, 741-742.)

Here, Cross-Complainant insufficiently alleged damages due to encroaching roots. Instead, he plead interference with the drainage system on his property. (Cross-Compl. ¶ 22.) This is insufficient.

iii.

Block ocean views & cast a shadow

In California, “a landowner has no right to an unobstructed view over adjoining property.” (Boxer v. City of Beverly Hills (2016) 246 Cal.App.4th 1212, 1219.) “As a general rule, a landowner has no natural right to air, light or an unobstructed view and the law is reluctant to imply such a right.” (Ibid.) “Such a right may be created by private parties through the granting of an easement . . . or through the adoption of [CC&Rs] . . . or by the Legislature” or by [l]ocal governments . . . through the adoption of height limits.” (Ibid.)

Here, Cross-Complainant sufficiently alleged nuisance under this theory. Notably, he alleged that the planting violates the CC&Rs and local ordinances. (Cross-Compl. ¶ 24.) Put differently, this is outside the general rule that there are no rights to light or unobstructed views.

In sum, Cross-Complainant alleged one viable theory supporting his nuisance claim.

Accordingly, the court OVERRULES the demurrer to the second cause of action.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrer

to the first cause of action is OVERRULED;

2. Demurrer

to the second cause of action is OVERRULED;

Cross-Defendant is to file an ANSWER only no later than July

31, 2026.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 17, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

These arguments present no authority in support. “[C]ontentions are waived when a party fails to support them with reasoned argument and citations to authority.” (Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215.)

[2]

As such, the court declines to develop Morning Star’s “primary” definition argument.

[3]

This conduct is alleged by Nazemi – a separate party.

[4]

Again, there is no authority supporting this argument.